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California lawmakers to begin special session to protect state laws from second Trump presidency

December 2, 2024 | Associated Press News Service, The
Author: By TRÂN NGUYỄN, Associated Press | Section: Domestic | 928 Words
OpenURL Link

SACRAMENTO, Calif. (AP) — California Gov. Gavin Newsom and state lawmakers returned to the state Capitol on Monday to begin a special session to protect the state's progressive policies ahead of another Trump presidency.

The Democratic governor, a fierce critic of President-elect Donald Trump, is positioning California to once again be the center of a resistance effort against the conservative agenda. He is asking his Democratic allies in the Legislature, who hold supermajorities in both chambers, to approve additional funding to the attorney general's office to prepare for a robust legal fight against anticipated federal challenges.

Democratic Assemblymember Jesse Gabriel on Monday introduced legislation to set aside $25 million for legal fees to respond to potential attacks by the Trump administration on state policies regarding civil rights, climate change, immigration and abortion access.

“While we always hope to collaborate with our federal partners, California will be ready to vigorously defend our interests and values from any unlawful action by the incoming Trump Administration,” Gabriel said in a statement.

California sued the first Trump administration more than 120 times to various levels of success.

“We’re not going to be caught flat-footed,” Newsom said at a recent news conference.

Trump often depicts California as representing all he sees wrong in America. Democrats, which hold every statewide office in California and have commanding margins in the Legislature and congressional delegation, outnumber registered Republicans by nearly 2-to-1 statewide.

Trump called the Democratic governor “New-scum” during a campaign stop in Southern California and has relentlessly lambasted the Democratic stronghold over its large number of immigrants in the U.S. illegally, homeless population and thicket of regulations.

Trump also waded into a water rights battle over the endangered delta smelt, a tiny fish that has pitted environmentalists against farmers and threatened to withhold federal aid to a state increasingly under threat from wildfires. He also vowed to follow through with his campaign promise of carrying out the mass deportation of immigrants without legal status and prosecuting his political enemies.

Before the special session was set to begin, state lawmakers swore in more than two dozen new members and elect leaders for the 2025 legislative session.

Hundreds of people also demonstrated around the Capitol on Monday to urge the Legislature to try to stop Trump's mass deportation plans. They carried banners that said “Not one cent for mass deportation” and “MAGA out of California.”

“With the results of the presidential election, we need our state elected officials to use every tool and every resource they have available to them to protect our immigrant Californians,” protester Deborah Lee said.

State Attorney General Rob Bonta said his office will protect the state’s immigration population, while Newsom last week unveiled a proposal to revive a rebate program for electric vehicle purchases if the incoming Trump administration eliminates a federal tax credit for people who buy electric cars. Newsom is also considering creating

a backup disaster relief fund for the wildfire-prone state after Trump’s threats.

Bonta announced legislation Monday aimed at bolstering reproductive rights in the state, including by allowing the attorney general to seek monetary penalties against local governments that infringe on those rights. The proposals are part of the state's efforts to safeguard against threats to abortion access after the U.S. Supreme Court overturned Roe v. Wade.

Republican lawmakers blasted Newsom and his Democratic allies over the special session. Rep. Vince Fong, who represents the state’s Central Valley farm belt, said California should work with the incoming Trump administration instead.

“Gavin Newsom’s actions are tone-deaf to the concerns of Californians who disapprove of the direction of our state and country,” Fong said in a video on social media.

Legislators also are expected to spend the year discussing ways to protect dozens of laws expected to be targeted by the Trump administration, including one that has made the state a sanctuary for people seeking abortions who live in states where such practices have been severely limited.

California, the nation’s most populous state, was the first to mandate that by 2035 all new cars, pickup trucks and SUVs sold in California be electric, hydrogen-powered or plug-in hybrids. The state also extends state-funded health care to all low-income residents regardless of their immigration status.

Newsom hasn't provided details about what actions the lawmakers will consider but said he wanted funding in place before Trump's inauguration day, Jan. 20. The state spent roughly $42 million in litigation costs during the first Trump administration, officials said.

California is projected to face a $2 billion budget deficit next year, with bigger shortfalls ahead. Gabriel, who sued the first Trump administration in 2017 when it tried to end a program to shield young immigrants from being deported, said lining up the funding now is “a wise investment."

California successfully clawed back $57 million between 2017 and 2018 after prevailing in a lawsuit to block the Trump administration from putting immigration enforcement conditions on certain federal law enforcement grants. Another legal victory over the citizenship question in the 2020 census forced the federal government to return $850,000 to the state, according to the attorney general's office.

“We are positioned, if necessary, to be the tip of the spear of the resistance and to push back against any unlawful or unconstitutional actions by the Trump administration,” said Gabriel, who chairs the budget committee.

During Trump’s first presidency, Democratic attorneys general banded together to file lawsuits over immigration, Trump’s travel ban for residents of Muslim countries, the environment, immigration and other topics. But Trump has one possible advantage this time around: He was aggressive in nominating conservative jurists to federal courts at all levels, including the Supreme Court.

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Associated Press journalists Haven Daley and Sophie Austin contributed to this report.

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- **Citation (apa Style)**
  TRÂN NGUYỄN, B. (2024, December 2). California lawmakers to begin special session to protect state laws from second Trump presidency. *Associated Press News Service, The*. Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/19D38E1DE4BFB318.